

Multiple Choice (10 marks)

1. Functions of the law include all but which of the following?
 - (a) maximizing individual freedom
 - (b) providing a basis for compromise
 - (c) keeping the peace
 - (d) promoting the principles of the free enterprise system
2. The legislative branch of the United States government has the power to _____ the law.
 - (a) interpret
 - (b) make
 - (c) enforce
 - (d) override
3. Which of the factors below contributed significantly to the revival of natural law in the 20 th century?
 - (a) The Depression of the 1930 s.
 - (b) The rise of Fascism.
 - (c) The international recognition of human rights after WWII.
 - (d) The Bolshevik revolution.
4. According to Malinowski, the Trobriand Islanders organized their society around what concept?
 - (a) Conflict.
 - (b) Love.
 - (c) War.
 - (d) Reciprocity.
5. Which of the following propositions would be rejected by those who describe themselves as critical legal theorists?
 - (a) Law is politics.
 - (b) Law is determinate.
 - (c) Law reflects economic power.
 - (d) Law is unstable.

True / False (10 marks)

Answer True or False

6. True or False: H.L.A. Hart is the author of the book 'The Concept of Law', which explores the nature of legal systems.
7. True or False: Austin's perspective on jurisprudence emphasizes the importance of moral principles over the concept of positive law.
8. True or False: Domestic law is always superior to international law, allowing countries to ignore international obligations.
9. True or False: The enforcement mechanism of the International Covenant on Civil and Political Rights includes both a reporting mechanism and the right to individual petition.
10. True or False: Critical Race Theorists reject concepts like 'justice' because they are considered overly complex and difficult to understand.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the concept of jurisprudence as the philosophy of positive law, as articulated by Austin. Analyze its significance in the context of constitutional law and its implications for legal interpretation.
12. Discuss the entities entitled to request advisory opinions from the International Court of Justice, including the implications of such requests for international law and governance.

End of Paper